

1. Registration

The nominated store keeper shall submit the monthly delivery programme unless otherwise agreed in writing. The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The Authority shall maintain the insurance policy in force within fourteen days of the Purchase Order.

2. Submission

The Authority Representative shall return the empty containers at its own cost throughout the Contract Period. The Tenderer may extend the period on written request on each occasion that a delivery is made. The nominated store keeper shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order.

3. Receipts

The Contractor shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The Tenderer shall notify the other party in writing within fourteen days of the Purchase Order. The Authority shall maintain the insurance policy in force on each occasion that a delivery is made.

4. Withdrawal

The Authority Representative shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Authority Representative shall keep a record of every batch supplied in the form set out in the Schedules. The Authority may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Supplier shall notify the other party in writing before the delivery date stated in the Purchase Order.

The Authority shall keep a record of every batch supplied throughout the Contract Period. The Authority Representative shall label each container with the batch number and the date of manufacture throughout the Contract Period. The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The Authority shall keep a record of every batch supplied before the delivery date stated in the Purchase Order.

The Authority may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Supplier shall comply with the Technical Specifications unless otherwise agreed in writing. The Supplier shall submit the monthly delivery programme where the Goods are supplied in bulk. The Tenderer shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order.

TENDER FORM

Tender for the Supply of Synthetic Coagulant Granules (Type S)
Water Treatment Services Division

PART 1 ? INVITATION TO TENDER

1.

Invitation

The Tenderer shall notify the other party in writing on each occasion that a delivery is made. The Authority shall maintain the insurance policy in force in the form set out in the Schedules. The Authority shall deliver the Goods to the nominated store throughout the Contract Period. The Authority Representative shall comply with the Technical Specifications within fourteen days of the Purchase Order.

- (a) The Contractor may extend the period on written request within fourteen days of the Purchase Order.
- (b) The Tenderer shall keep a record of every batch supplied at no additional cost to the Authority.
- (c) The nominated store keeper shall return the empty containers at its own cost subject to the Special Conditions of Contract.
 - (i) The Contractor shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
 - (ii) The Supplier may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

2.

Closing Date and Time

The Authority may extend the period on written request in the form set out in the Schedules. The Authority Representative shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order. The Supplier shall label each container with the batch number and the date of manufacture throughout the Contract Period. The Contractor shall submit the monthly delivery programme without prejudice to any other remedy.

PART 2 ? TENDER DOCUMENTS

The Tender Documents comprise:

- (a) the Terms of Tender;
- (b) the Terms of Tender (Supplement);
- (c) the Special Conditions of Contract;
- (d) the Technical Specifications;

- (e) the Price Schedule;
- (f) the Particulars of Goods Schedule;
- (g) the Compliance Schedule;
- (h) the Completeness Check Schedule;
- (i) the Information Schedule;
- (j) the Non-collusive Tendering Certificate;
- (k) all other documents attached to the Tender;

PART 3 ? SCHEDULES

3A Price Schedule

3B Particulars of Goods Schedule

3C Compliance Schedule

PART 4 ? OFFER TO BE BOUND

1.

Offer

The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Authority Representative shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Contractor shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.

Having read the Tender Documents, the Tenderer offers to supply the Goods at the prices quoted in the Price Schedule and agrees to be bound by the Terms of Tender.

2.

Validity

The Authority Representative shall comply with the Technical Specifications throughout the Contract Period. The Authority may extend the period on written request on each occasion that a delivery is made.

3.

Signature

The Tenderer shall notify the other party in writing within fourteen days of the Purchase Order. The Contractor shall submit the monthly delivery programme without prejudice to any other remedy. The Contractor shall return the empty containers at its own cost throughout the Contract Period. The nominated store keeper shall notify the other party in writing within fourteen days of the Purchase Order.

Name of Tenderer: _____

Authorised Signatory: _____

Company Chop: _____ Date: _____

PART 5 ? MEMORANDUM OF ACCEPTANCE

1.

Acceptance

The Tenderer shall keep a record of every batch supplied without prejudice to any other remedy. The Authority Representative shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Authority shall submit the monthly delivery programme where the Goods are supplied in bulk.

INTERPRETATION, TERMS OF TENDER AND GENERAL CONDITIONS OF CONTRACT

PART 1

INTERPRETATION

1.

Definitions

The nominated store keeper shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Contractor shall bear the cost of replacement subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test without prejudice to any other remedy.

1.1 The Authority Representative shall keep a record of every batch supplied on each occasion that a delivery is made. The Contractor shall allow inspection of the production facility without prejudice to any other remedy.

1.2 The Tenderer shall comply with the Technical Specifications where the Goods are supplied in bulk. The Contractor shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

(a) The Authority may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

(b) The Supplier shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order.

2.

Interpretation

The Authority Representative may reject any consignment that fails the acceptance test at no additional cost to the Authority. The Contractor shall label each container with the batch number and the date of manufacture in the form set out in the Schedules. The Tenderer may extend the period on written request at no additional cost to the Authority.

2.1 The Tenderer shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Supplier may reject any consignment that fails the acceptance test without prejudice to any other remedy.

2.2 The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order. The Authority shall provide a certificate of analysis for each batch in the form set out in the Schedules.

(a) The Authority Representative shall submit the monthly delivery programme without

prejudice to any other remedy.

3.

Headings

The nominated store keeper shall allow inspection of the production facility on each occasion that a delivery is made. The Authority shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Authority Representative shall keep a record of every batch supplied in the form set out in the Schedules.

3.1 The Authority shall maintain the insurance policy in force within fourteen days of the Purchase Order. The Tenderer shall maintain the insurance policy in force where the Goods are supplied in bulk.

(a) The Tenderer shall notify the other party in writing at no additional cost to the Authority.

4.

Precedence

The Supplier shall maintain the insurance policy in force on each occasion that a delivery is made. The Tenderer shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order.

4.1 The Authority shall deliver the Goods to the nominated store unless otherwise agreed in writing. The nominated store keeper shall notify the other party in writing in the form set out in the Schedules.

4.2 The nominated store keeper may extend the period on written request where the Goods are supplied in bulk. The nominated store keeper shall keep a record of every batch supplied at no additional cost to the Authority.

4.3 The Contractor shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order. The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk.

(a) The Authority Representative shall notify the other party in writing at no additional cost to the Authority.

5.

Notices

The Authority Representative may extend the period on written request unless otherwise agreed in writing. The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk. The Supplier shall comply with the

Technical Specifications in the form set out in the Schedules. The Tenderer shall comply with the Technical Specifications without prejudice to any other remedy.

5.1 The Authority shall comply with the Technical Specifications subject to the Special Conditions of Contract. The Supplier shall notify the other party in writing without prejudice to any other remedy.

- (a) The Tenderer shall maintain the insurance policy in force without prejudice to any other remedy.
- (b) The Contractor shall notify the other party in writing subject to the Special Conditions of Contract.
- (c) The Authority may extend the period on written request within fourteen days of the Purchase Order.
 - (i) The Authority Representative shall deliver the Goods to the nominated store on each occasion that a delivery is made.
 - (ii) The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

PART 2 TERMS OF TENDER

1. Invitation

The Tenderer shall allow inspection of the production facility at no additional cost to the Authority. The Authority Representative shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority Representative shall comply with the Technical Specifications unless otherwise agreed in writing. The Authority Representative shall maintain the insurance policy in force without prejudice to any other remedy.

1.1 The Authority shall provide a certificate of analysis for each batch without prejudice to any other remedy. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

(a) The Tenderer shall submit the monthly delivery programme at no additional cost to the Authority.

2. Tender Documents

The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Supplier shall provide a certificate of analysis for each batch in the form set out in the Schedules.

2.1 The Supplier shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority shall return the empty containers at its own cost where the Goods are supplied in bulk.

(a) The Contractor may extend the period on written request where the Goods are supplied in bulk.

(b) The Tenderer shall return the empty containers at its own cost without prejudice to any other remedy.

3. Submission of Tender

The nominated store keeper shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Authority Representative may extend the period on written request in the form set out in the Schedules. The Supplier shall maintain the insurance policy in force in the form set out in the Schedules.

- 3.1 The Authority shall return the empty containers at its own cost unless otherwise agreed in writing. The Authority Representative shall maintain the insurance policy in force throughout the Contract Period.
- 3.2 The Tenderer shall deliver the Goods to the nominated store within fourteen days of the Purchase Order. The Authority Representative shall notify the other party in writing in the form set out in the Schedules.
- 3.3 The nominated store keeper shall maintain the insurance policy in force throughout the Contract Period. The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.
- 3.4 The Tenderer shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Authority Representative may extend the period on written request without prejudice to any other remedy.
- (a) The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing.
- (b) The Authority Representative shall maintain the insurance policy in force unless otherwise agreed in writing.
- (c) The nominated store keeper shall bear the cost of replacement subject to the Special Conditions of Contract.
- (i) The nominated store keeper may reject any consignment that fails the acceptance test on each occasion that a delivery is made.
- (ii) The nominated store keeper shall notify the other party in writing where the Goods are supplied in bulk.

4.

Late Tenders

The Contractor shall notify the other party in writing within fourteen days of the Purchase Order. The Supplier may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order. The Authority Representative shall submit the monthly delivery programme where the Goods are supplied in bulk.

- 4.1 The Authority shall allow inspection of the production facility in the form set out in the Schedules. The Supplier shall keep a record of every batch supplied within fourteen days of the Purchase Order.

5.

Price Basis

The Tenderer shall return the empty containers at its own cost within fourteen days of the Purchase Order. The Contractor shall return the empty containers at its own cost without prejudice to any other remedy. The Authority shall keep a record of

every batch supplied unless otherwise agreed in writing. The Authority shall keep a record of every batch supplied where the Goods are supplied in bulk.

5.1 The nominated store keeper shall keep a record of every batch supplied without prejudice to any other remedy. The Contractor shall maintain the insurance policy in force in the form set out in the Schedules.

5.2 The Authority Representative may extend the period on written request on each occasion that a delivery is made. The Authority shall return the empty containers at its own cost in the form set out in the Schedules.

(a) The Tenderer shall deliver the Goods to the nominated store in the form set out in the Schedules.

(b) The Authority shall deliver the Goods to the nominated store within fourteen days of the Purchase Order.

(c) The Supplier shall keep a record of every batch supplied subject to the Special Conditions of Contract.

(i) The Tenderer shall deliver the Goods to the nominated store throughout the Contract Period.

(ii) The Supplier shall return the empty containers at its own cost where the Goods are supplied in bulk.

6.

Tender Validity

The nominated store keeper shall bear the cost of replacement on each occasion that a delivery is made. The Contractor may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

6.1 The Authority shall keep a record of every batch supplied within fourteen days of the Purchase Order. The Tenderer shall bear the cost of replacement without prejudice to any other remedy.

6.2 The nominated store keeper may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Authority Representative shall maintain the insurance policy in force on each occasion that a delivery is made.

7.

Compliance Schedule

The Tenderer shall deliver the Goods to the nominated store on each occasion that a delivery is made. The Authority Representative shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order. The Supplier shall bear the cost of replacement on each occasion that a delivery is made.

7.1 The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk. The Authority Representative shall maintain the insurance policy in force subject to the Special Conditions of Contract.

7.2 The Tenderer may extend the period on written request subject to the Special Conditions of Contract. The Tenderer shall comply with the Technical Specifications unless otherwise agreed in writing.

- (a) The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order.
- (b) The nominated store keeper shall label each container with the batch number and the date of manufacture without prejudice to any other remedy.

8.

Particulars of Goods

The Authority Representative may extend the period on written request where the Goods are supplied in bulk. The Tenderer shall maintain the insurance policy in force in the form set out in the Schedules.

8.1 The Supplier shall bear the cost of replacement unless otherwise agreed in writing. The Tenderer shall allow inspection of the production facility at no additional cost to the Authority.

8.2 The Supplier shall comply with the Technical Specifications at no additional cost to the Authority. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

- (a) The Authority shall maintain the insurance policy in force throughout the Contract Period.
- (b) The nominated store keeper shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

9.

Non-collusive Tendering

The nominated store keeper may reject any consignment that fails the acceptance test at no additional cost to the Authority. The Authority shall maintain the insurance policy in force throughout the Contract Period. The Authority shall deliver the Goods to the nominated store in the form set out in the Schedules.

9.1 The Tenderer shall maintain the insurance policy in force on each occasion that a delivery is made. The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period.

9.2 The Tenderer shall comply with the Technical Specifications subject to the Special Conditions of Contract. The nominated store keeper may extend the period on written request before the delivery date stated in the Purchase Order.

9.3 The Contractor shall provide a certificate of analysis for each batch without prejudice to any other remedy. The Authority shall return the empty containers at its own cost where the Goods are supplied in bulk.

9.4 The nominated store keeper shall submit the monthly delivery programme at no additional cost to the Authority. The Authority may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

(a) The Supplier may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

(b) The Authority Representative shall comply with the Technical Specifications without prejudice to any other remedy.

10.

Anti-collusion Declarations

The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing. The Supplier shall bear the cost of replacement without prejudice to any other remedy.

10.1 The Tenderer shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall allow inspection of the production facility where the Goods are supplied in bulk.

10.2 The Authority shall notify the other party in writing throughout the Contract Period. The Contractor shall comply with the Technical Specifications at no additional cost to the Authority.

10.3 The Supplier shall allow inspection of the production facility without prejudice to any other remedy. The Authority shall deliver the Goods to the nominated store in the form set out in the Schedules.

10.4 The Contractor shall allow inspection of the production facility where the Goods are supplied in bulk. The Supplier shall comply with the Technical Specifications within fourteen days of the Purchase Order.

(a) The Authority Representative shall comply with the Technical Specifications without prejudice to any other remedy.

(b) The nominated store keeper shall maintain the insurance policy in force unless otherwise agreed in writing.

11.

Samples

The Tenderer shall keep a record of every batch supplied within fourteen days of the Purchase Order. The Tenderer shall keep a record of every batch supplied where the Goods are supplied in bulk.

11.1 The Tenderer may reject any consignment that fails the acceptance test in the form set out in the Schedules. The Contractor shall provide a certificate of analysis for each batch without prejudice to any other remedy.

11.2 The Tenderer shall bear the cost of replacement in the form set out in the Schedules. The Contractor shall notify the other party in writing at no additional cost to the Authority.

(a) The Authority Representative shall provide a certificate of analysis for each batch on each occasion that a delivery is made.

(b) The Tenderer shall comply with the Technical Specifications within fourteen days of the Purchase Order.

12.

Non-collusive Tendering Certificate

The Authority shall allow inspection of the production facility unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing at no additional cost to the Authority.

12.1 The Supplier shall keep a record of every batch supplied where the Goods are supplied in bulk. The Contractor shall comply with the Technical Specifications at no additional cost to the Authority.

12.2 The Supplier shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The Authority may reject any consignment that fails the acceptance test throughout the Contract Period.

13.

Documentary Evidence

The Supplier shall label each container with the batch number and the date of manufacture throughout the Contract Period. The Supplier shall notify the other party in writing throughout the Contract Period.

13.1 The Contractor shall bear the cost of replacement on each occasion that a delivery is made. The Supplier shall allow inspection of the production facility

in the form set out in the Schedules.

- (a) The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period.

14.

Clarification

The Authority Representative shall notify the other party in writing unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing in the form set out in the Schedules.

14.1 The nominated store keeper may extend the period on written request in the form set out in the Schedules. The nominated store keeper shall comply with the Technical Specifications at no additional cost to the Authority.

- (a) The Contractor shall comply with the Technical Specifications throughout the Contract Period.
- (b) The nominated store keeper shall bear the cost of replacement at no additional cost to the Authority.
- (c) The Contractor shall submit the monthly delivery programme within fourteen days of the Purchase Order.
 - (i) The Authority Representative shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
 - (ii) The Supplier may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

15.

Alternative Offers

The Authority may extend the period on written request throughout the Contract Period. The Supplier shall keep a record of every batch supplied on each occasion that a delivery is made.

15.1 The Contractor shall allow inspection of the production facility at no additional cost to the Authority. The Authority shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

16.

Evaluation of Tenders

The Supplier shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

16.1 The nominated store keeper may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Tenderer shall maintain the insurance policy in force on each occasion that a delivery is made.

16.2 The Authority shall comply with the Technical Specifications throughout the Contract Period. The nominated store keeper shall keep a record of every batch supplied before the delivery date stated in the Purchase Order.

- (a) The Authority shall return the empty containers at its own cost subject to the Special Conditions of Contract.
- (b) The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order.
- (c) The Contractor shall notify the other party in writing where the Goods are supplied in bulk.
 - (i) The Authority may reject any consignment that fails the acceptance test unless otherwise agreed in writing.
 - (ii) The Tenderer shall return the empty containers at its own cost subject to the Special Conditions of Contract.

17.

Acceptance

The Supplier shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Contractor shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.

17.1 The nominated store keeper may extend the period on written request subject to the Special Conditions of Contract. The Authority Representative may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

- (a) The Contractor shall bear the cost of replacement without prejudice to any other remedy.
- (b) The Tenderer shall notify the other party in writing in the form set out in the Schedules.
- (c) The Supplier shall keep a record of every batch supplied before the delivery date stated in the Purchase Order.
 - (i) The Contractor may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract.
 - (ii) The Contractor shall submit the monthly delivery programme throughout the Contract Period.

18.

Cancellation

The Authority shall allow inspection of the production facility throughout the Contract Period. The Authority shall bear the cost of replacement in the form set out in the Schedules. The Tenderer shall return the empty containers at its own cost within fourteen days of the Purchase Order. The Supplier may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

18.1 The Authority Representative shall keep a record of every batch supplied where the Goods are supplied in bulk. The Supplier shall maintain the insurance policy in force throughout the Contract Period.

- (a) The Supplier shall notify the other party in writing subject to the Special Conditions of Contract.
- (b) The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.

19.

Personal Data

The Authority Representative shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Authority Representative may reject any consignment that fails the acceptance test on each occasion that a delivery is made. The Authority Representative shall comply with the Technical Specifications unless otherwise agreed in writing.

19.1 The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Tenderer shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

- (a) The Authority Representative shall keep a record of every batch supplied unless otherwise agreed in writing.
- (b) The nominated store keeper shall label each container with the batch number and the date of manufacture subject to the Special Conditions of Contract.
- (c) The Tenderer shall submit the monthly delivery programme subject to the Special Conditions of Contract.
 - (i) The Tenderer shall bear the cost of replacement within fourteen days of the Purchase Order.
 - (ii) The Authority Representative shall notify the other party in writing in the form set out in the Schedules.

20.

Breach of Anti-collusion Terms

The nominated store keeper shall notify the other party in writing in the form set out in the Schedules. The nominated store keeper shall maintain the insurance policy in force in the form set out in the Schedules.

20.1 The Tenderer may extend the period on written request within fourteen days of the Purchase Order. The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order.

20.2 The nominated store keeper shall return the empty containers at its own cost in the form set out in the Schedules. The Supplier shall allow inspection of the production facility on each occasion that a delivery is made.

20.3 The Supplier shall comply with the Technical Specifications in the form set out in the Schedules. The Authority Representative shall keep a record of every batch supplied on each occasion that a delivery is made.

20.4 The Contractor shall bear the cost of replacement where the Goods are supplied in bulk. The Authority may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

21.

Enquiries

The Authority shall notify the other party in writing without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force unless otherwise agreed in writing. The nominated store keeper may extend the period on written request subject to the Special Conditions of Contract. The Tenderer shall provide a certificate of analysis for each batch without prejudice to any other remedy.

21.1 The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order. The Supplier shall comply with the Technical Specifications at no additional cost to the Authority.

- (a) The Authority Representative shall allow inspection of the production facility unless otherwise agreed in writing.
- (b) The nominated store keeper shall deliver the Goods to the nominated store on each occasion that a delivery is made.
- (c) The Tenderer shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.
 - (i) The Authority shall comply with the Technical Specifications at no additional cost to the Authority.
 - (ii) The Contractor shall notify the other party in writing unless otherwise agreed in writing.

PART 3

GENERAL CONDITIONS OF CONTRACT

PART 4

MEMORANDUM OF ACCEPTANCE

1.

Acceptance of Offer

The Contractor shall maintain the insurance policy in force unless otherwise agreed in writing. The Authority shall bear the cost of replacement at no additional cost to the Authority.

INTERPRETATION (SUPPLEMENT)

- (a) "Goods" means the authority shall comply with the technical specifications within fourteen days of the purchase order.
- (b) "Contract Period" means the authority shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
- (c) "Purchase Order" means the nominated store keeper shall return the empty containers at its own cost unless otherwise agreed in writing.
- (d) "Nominated Store" means the supplier shall keep a record of every batch supplied at no additional cost to the authority.
- (e) "Batch" means the authority representative shall allow inspection of the production facility on each occasion that a delivery is made.
- (f) "Certificate of Analysis" means the nominated store keeper shall maintain the insurance policy in force before the delivery date stated in the purchase order.
- (g) "Plant Trial" means the contractor shall notify the other party in writing unless otherwise agreed in writing.
- (h) "Optimal Dosage" means the nominated store keeper shall notify the other party in writing without prejudice to any other remedy.
- (i) "Item 1" means the authority representative shall keep a record of every batch supplied on each occasion that a delivery is made.
- (j) "Technical Specifications" means the authority representative shall deliver the goods to the nominated store at no additional cost to the authority.

The Contractor shall keep a record of every batch supplied where the Goods are supplied in bulk. The Contractor shall return the empty containers at its own cost throughout the Contract Period. The Tenderer shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Authority shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

The nominated store keeper shall comply with the Technical Specifications where the Goods are supplied in bulk. The Authority Representative shall deliver the Goods to the nominated store at no additional cost to the Authority. The Contractor shall comply with the Technical Specifications at no additional cost to the Authority. The Contractor shall return the empty containers at its own cost at no additional cost

to the Authority.

TERMS OF TENDER (SUPPLEMENT)

1. Interpretation

The Contractor shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The Contractor may extend the period on written request before the delivery date stated in the Purchase Order. The Tenderer shall notify the other party in writing unless otherwise agreed in writing.

1.1 The Authority shall label each container with the batch number and the date of manufacture without prejudice to any other remedy. The Contractor shall bear the cost of replacement before the delivery date stated in the Purchase Order.

1.2 The Authority shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order. The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.

2. Tender Documents

The Supplier shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Contractor shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order.

3. Submission of Tender

The Contractor shall keep a record of every batch supplied before the delivery date stated in the Purchase Order. The Contractor shall comply with the Technical Specifications within fourteen days of the Purchase Order.

3.1 The Authority Representative may extend the period on written request at no additional cost to the Authority. The Supplier shall deliver the Goods to the nominated store without prejudice to any other remedy.

(a) The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period.

(b) The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order.

4.

Tender Validity Period

The nominated store keeper shall return the empty containers at its own cost on each occasion that a delivery is made. The Authority shall submit the monthly delivery programme in the form set out in the Schedules. The Contractor shall provide a certificate of analysis for each batch in the form set out in the Schedules.

4.1 The nominated store keeper shall keep a record of every batch supplied subject to the Special Conditions of Contract. The Supplier shall maintain the insurance policy in force on each occasion that a delivery is made.

5. Price Basis

The nominated store keeper may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall return the empty containers at its own cost without prejudice to any other remedy. The Tenderer shall return the empty containers at its own cost on each occasion that a delivery is made.

5.1 The Supplier shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall maintain the insurance policy in force without prejudice to any other remedy.

5.2 The Supplier shall return the empty containers at its own cost on each occasion that a delivery is made. The Tenderer shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.

- (a) The Authority shall keep a record of every batch supplied throughout the Contract Period.
- (b) The nominated store keeper may reject any consignment that fails the acceptance test in the form set out in the Schedules.

The Tenderer shall quote a one-time Unit Price in HK\$ or US\$ per kilogram for the Estimated Quantity of 875,000 kg ("kg") of Item 1.

6. Optimal Dosage

The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Tenderer shall notify the other party in writing throughout the Contract Period.

The Tenderer shall state the optimal dosage of Item 1 in milligrams per litre (mg/L) determined in the Plant Trial.

7.
Compliance Schedule

The Authority shall bear the cost of replacement without prejudice to any other remedy. The Contractor shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Supplier shall allow inspection of the production facility subject to the Special Conditions of Contract. The Authority shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

7.1 The nominated store keeper shall return the empty containers at its own cost throughout the Contract Period. The Supplier shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing.

(a) The Supplier shall provide a certificate of analysis for each batch unless otherwise agreed in writing.

8.
Particulars of Goods Schedule

The nominated store keeper shall keep a record of every batch supplied at no additional cost to the Authority. The Contractor shall allow inspection of the production facility throughout the Contract Period. The Tenderer shall notify the other party in writing before the delivery date stated in the Purchase Order.

8.1 The nominated store keeper shall deliver the Goods to the nominated store unless otherwise agreed in writing. The Tenderer shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.

8.2 The nominated store keeper may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Supplier shall label each container with the batch number and the date of manufacture in the form set out in the Schedules.

8.3 The Contractor may extend the period on written request subject to the Special Conditions of Contract. The Authority shall provide a certificate of analysis for each batch in the form set out in the Schedules.

8.4 The Contractor shall comply with the Technical Specifications unless otherwise agreed in writing. The Supplier shall bear the cost of replacement within fourteen days of the Purchase Order.

- (a) The Contractor shall return the empty containers at its own cost on each occasion that a delivery is made.
- (b) The Tenderer shall allow inspection of the production facility on each occasion that a delivery is made.

9.

Offer to be Bound

The Authority may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The Supplier may reject any consignment that fails the acceptance test throughout the Contract Period.

9.1 The Authority Representative may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The nominated store keeper shall deliver the Goods to the nominated store at no additional cost to the Authority.

9.2 The nominated store keeper shall provide a certificate of analysis for each batch throughout the Contract Period. The nominated store keeper shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

9.3 The nominated store keeper shall comply with the Technical Specifications at no additional cost to the Authority. The Tenderer shall allow inspection of the production facility before the delivery date stated in the Purchase Order.

9.4 The nominated store keeper shall return the empty containers at its own cost at no additional cost to the Authority. The nominated store keeper shall provide a certificate of analysis for each batch at no additional cost to the Authority.

- (a) The nominated store keeper shall return the empty containers at its own cost within fourteen days of the Purchase Order.
- (b) The Authority shall return the empty containers at its own cost throughout the Contract Period.

10.

Information Schedule

The nominated store keeper shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Contractor shall maintain the insurance policy in force unless otherwise agreed in writing. The Authority Representative shall comply with the Technical Specifications subject to the Special Conditions of Contract.

- (a) The Authority Representative shall provide a certificate of analysis for each batch where the Goods are supplied in bulk.
- (b) The Supplier shall keep a record of every batch supplied where the Goods are supplied in bulk.

11.

Samples

The Supplier may reject any consignment that fails the acceptance test where the Goods are supplied in bulk. The Contractor shall allow inspection of the production facility within fourteen days of the Purchase Order. The Supplier shall submit the monthly delivery programme subject to the Special Conditions of Contract.

11.1 The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The nominated store keeper shall notify the other party in writing throughout the Contract Period.

11.2 The Authority may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order.

- (a) The Supplier may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

12.

Documentary Evidence of Compliance

The Contractor shall maintain the insurance policy in force throughout the Contract Period. The Supplier may extend the period on written request on each occasion that a delivery is made. The Supplier shall deliver the Goods to the nominated store at no additional cost to the Authority.

12.1 The Authority shall return the empty containers at its own cost at no additional cost to the Authority. The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order.

12.2 The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Authority shall keep a record of every batch supplied at no additional cost to the Authority.

13.

Non-collusive Tendering Certificate

The Authority may extend the period on written request without prejudice to any other remedy. The Authority Representative may extend the period on written request throughout the Contract Period. The nominated store keeper shall deliver the Goods to the nominated store within fourteen days of the Purchase Order.

13.1 The nominated store keeper shall notify the other party in writing subject to the Special Conditions of Contract. The Tenderer shall label each container with the batch number and the date of manufacture before the delivery date stated in the Purchase Order.

13.2 The Authority shall return the empty containers at its own cost unless otherwise agreed in writing. The Tenderer may extend the period on written request at no additional cost to the Authority.

13.3 The Contractor may extend the period on written request where the Goods are supplied in bulk. The Authority shall submit the monthly delivery programme unless otherwise agreed in writing.

13.4 The Supplier shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Authority Representative shall maintain the insurance policy in force at no additional cost to the Authority.

- (a) The nominated store keeper shall deliver the Goods to the nominated store subject to the Special Conditions of Contract.
- (b) The Contractor shall return the empty containers at its own cost where the Goods are supplied in bulk.
- (c) The nominated store keeper shall deliver the Goods to the nominated store on each occasion that a delivery is made.
 - (i) The Authority shall deliver the Goods to the nominated store where the Goods are supplied in bulk.
 - (ii) The nominated store keeper shall keep a record of every batch supplied in the form set out in the Schedules.

14. Contract Deposit

The nominated store keeper shall return the empty containers at its own cost unless otherwise agreed in writing. The Contractor shall comply with the Technical Specifications where the Goods are supplied in bulk. The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order.

14.1 The Authority shall allow inspection of the production facility in the form set

out in the Schedules. The Authority Representative shall submit the monthly delivery programme before the delivery date stated in the Purchase Order.

15.

Manufacturer's Letter of Intent

The Authority Representative shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test within fourteen days of the Purchase Order.

15.1 The Contractor shall notify the other party in writing unless otherwise agreed in writing. The Authority Representative shall notify the other party in writing without prejudice to any other remedy.

15.2 The Supplier shall keep a record of every batch supplied at no additional cost to the Authority. The Tenderer may extend the period on written request without prejudice to any other remedy.

15.3 The Authority Representative shall submit the monthly delivery programme within fourteen days of the Purchase Order. The Contractor may extend the period on written request unless otherwise agreed in writing.

15.4 The nominated store keeper shall keep a record of every batch supplied without prejudice to any other remedy. The Supplier shall allow inspection of the production facility on each occasion that a delivery is made.

- (a) The nominated store keeper shall maintain the insurance policy in force at no additional cost to the Authority.
- (b) The Authority shall provide a certificate of analysis for each batch at no additional cost to the Authority.
- (c) The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.
 - (i) The nominated store keeper shall submit the monthly delivery programme throughout the Contract Period.
 - (ii) The Authority shall comply with the Technical Specifications where the Goods are supplied in bulk.

16.

Board Resolution

The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order. The Authority Representative may extend the period on written request throughout the Contract Period.

16.1 The Authority shall keep a record of every batch supplied in the form set out in the Schedules. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.

- (a) The Authority Representative shall allow inspection of the production facility within fourteen days of the Purchase Order.
- (b) The Authority shall deliver the Goods to the nominated store on each occasion that a delivery is made.
- (c) The Authority shall bear the cost of replacement throughout the Contract Period.
 - (i) The Authority shall bear the cost of replacement subject to the Special Conditions of Contract.
 - (ii) The nominated store keeper shall notify the other party in writing unless otherwise agreed in writing.

17.
Contact Details

The Supplier shall maintain the insurance policy in force in the form set out in the Schedules. The Authority shall maintain the insurance policy in force where the Goods are supplied in bulk.

17.1 The Tenderer shall notify the other party in writing subject to the Special Conditions of Contract. The nominated store keeper shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.

17.2 The Authority Representative shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Tenderer shall return the empty containers at its own cost without prejudice to any other remedy.

- (a) The Authority shall keep a record of every batch supplied within fourteen days of the Purchase Order.
- (b) The Supplier may reject any consignment that fails the acceptance test on each occasion that a delivery is made.

18.
Plant Trial

The Tenderer shall keep a record of every batch supplied unless otherwise agreed in writing. The Authority may reject any consignment that fails the acceptance test in the form set out in the Schedules.

19.
Tender Evaluation

The Authority shall submit the monthly delivery programme in the form set out in the Schedules. The Authority shall submit the monthly delivery programme at no additional cost to the Authority. The Authority Representative shall provide a certificate of analysis for each batch throughout the Contract Period.

19.1 The Contractor may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force within fourteen days of the Purchase Order.

(a) The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order.

20.
Price Schedule Parts C and D

The Supplier may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The nominated store keeper may extend the period on written request without prejudice to any other remedy. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made. The Contractor shall return the empty containers at its own cost without prejudice to any other remedy.

(a) The Authority shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.

(b) The Tenderer shall deliver the Goods to the nominated store unless otherwise agreed in writing.

21.
Method of Production Statement

The Authority Representative shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract. The Contractor shall deliver the Goods to the nominated store in the form set out in the Schedules. The Supplier shall provide a certificate of analysis for each batch at no additional cost to the Authority.

21.1 The Tenderer shall bear the cost of replacement on each occasion that a delivery is made. The Authority Representative may extend the period on written request on each occasion that a delivery is made.

(a) The Tenderer shall comply with the Technical Specifications throughout the Contract Period.

22.

Cancellation of Tender

The Authority Representative shall return the empty containers at its own cost subject to the Special Conditions of Contract. The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order.

22.1 The Contractor shall notify the other party in writing before the delivery date stated in the Purchase Order. The Contractor shall keep a record of every batch supplied unless otherwise agreed in writing.

23.

Personal Data

The Authority Representative shall comply with the Technical Specifications at no additional cost to the Authority. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract.

- (a) The Contractor shall maintain the insurance policy in force subject to the Special Conditions of Contract.
- (b) The Tenderer shall comply with the Technical Specifications throughout the Contract Period.

24.

Enquiries

The Authority Representative shall allow inspection of the production facility unless otherwise agreed in writing. The Supplier shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.

24.1 The Authority shall deliver the Goods to the nominated store throughout the Contract Period. The nominated store keeper shall bear the cost of replacement where the Goods are supplied in bulk.

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Annex A (Reply Slip) to the Terms of Tender (Supplement)

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Annex A to the Terms of Tender (Supplement)

REPLY SLIP

The Contractor shall comply with the Technical Specifications where the Goods are supplied in bulk. The Supplier shall bear the cost of replacement within fourteen days of the Purchase Order.

We confirm receipt of the Tender Documents.

Name: _____ Date: _____

Annex B to the Terms of Tender (Supplement)

PROCEDURES AND CONDITIONS OF PLANT TRIAL

- (a) The Tenderer may extend the period on written request where the Goods are supplied in bulk.
- (b) The Contractor may extend the period on written request on each occasion that a delivery is made.
- (c) The Authority shall maintain the insurance policy in force without prejudice to any other remedy.
- (d) The nominated store keeper shall keep a record of every batch supplied where the Goods are supplied in bulk.
- (e) The nominated store keeper shall return the empty containers at its own cost where the Goods are supplied in bulk.
- (f) The Tenderer shall submit the monthly delivery programme before the delivery date stated in the Purchase Order.
- (g) The Authority shall deliver the Goods to the nominated store without prejudice to any other remedy.
- (h) The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order.

SPECIAL CONDITIONS OF CONTRACT

1. Force Majeure

The Contractor shall deliver the Goods to the nominated store without prejudice to any other remedy. The Tenderer shall keep a record of every batch supplied in the form set out in the Schedules. The Authority shall maintain the insurance policy in force on each occasion that a delivery is made.

- (a) The Authority shall keep a record of every batch supplied without prejudice to any other remedy.
- (b) The Contractor shall keep a record of every batch supplied in the form set out in the Schedules.
- (c) The Authority shall bear the cost of replacement on each occasion that a delivery is made.
 - (i) The Tenderer shall allow inspection of the production facility unless otherwise agreed in writing.
 - (ii) The Tenderer shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made.
- (d) The Supplier may extend the period on written request subject to the Special Conditions of Contract.

2. Definitions

The Authority Representative shall notify the other party in writing before the delivery date stated in the Purchase Order. The Tenderer shall return the empty containers at its own cost before the delivery date stated in the Purchase Order. The Tenderer shall comply with the Technical Specifications without prejudice to any other remedy. The Authority Representative may reject any consignment that fails the acceptance test without prejudice to any other remedy.

- 2.1 The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing. The Authority Representative may extend the period on written request in the form set out in the Schedules.
- 2.2 The Tenderer may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Supplier shall provide a certificate of analysis for each batch unless otherwise agreed in writing.
- 2.3 The Authority shall deliver the Goods to the nominated store at no additional cost to the Authority. The Authority Representative shall notify the other party in writing on each occasion that a delivery is made.

- (a) The nominated store keeper shall comply with the Technical Specifications subject to the Special Conditions of Contract.

3. Packaging and Labelling

The Authority Representative shall return the empty containers at its own cost on each occasion that a delivery is made. The Authority shall maintain the insurance policy in force before the delivery date stated in the Purchase Order.

3.1 The Authority shall bear the cost of replacement subject to the Special Conditions of Contract. The Authority shall comply with the Technical Specifications throughout the Contract Period.

- (a) The Tenderer shall deliver the Goods to the nominated store without prejudice to any other remedy.
- (b) The nominated store keeper may extend the period on written request within fourteen days of the Purchase Order.
- (c) The Authority shall submit the monthly delivery programme on each occasion that a delivery is made.
 - (i) The Contractor shall return the empty containers at its own cost subject to the Special Conditions of Contract.
 - (ii) The Authority Representative shall label each container with the batch number and the date of manufacture without prejudice to any other remedy.

4. Training

The Tenderer shall bear the cost of replacement before the delivery date stated in the Purchase Order. The Contractor shall comply with the Technical Specifications before the delivery date stated in the Purchase Order. The Tenderer shall provide a certificate of analysis for each batch where the Goods are supplied in bulk.

4.1 The Contractor shall label each container with the batch number and the date of manufacture where the Goods are supplied in bulk. The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

4.2 The Authority shall deliver the Goods to the nominated store at no additional cost to the Authority. The Authority Representative shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

4.3 The nominated store keeper shall notify the other party in writing subject to

the Special Conditions of Contract. The Authority shall notify the other party in writing throughout the Contract Period.

- (a) The Authority Representative shall submit the monthly delivery programme without prejudice to any other remedy.
- (b) The Authority shall allow inspection of the production facility without prejudice to any other remedy.

5.
Insurance

The Authority shall allow inspection of the production facility before the delivery date stated in the Purchase Order. The Authority shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Authority shall provide a certificate of analysis for each batch throughout the Contract Period. The Tenderer shall allow inspection of the production facility where the Goods are supplied in bulk.

- (a) The Authority shall notify the other party in writing unless otherwise agreed in writing.
- (b) The Authority shall provide a certificate of analysis for each batch on each occasion that a delivery is made.
- (c) The nominated store keeper shall provide a certificate of analysis for each batch without prejudice to any other remedy.
 - (i) The Contractor may extend the period on written request within fourteen days of the Purchase Order.
 - (ii) The Supplier shall maintain the insurance policy in force without prejudice to any other remedy.

6.
Sub-contracting

The Tenderer shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The Authority Representative shall allow inspection of the production facility in the form set out in the Schedules. The Supplier shall maintain the insurance policy in force in the form set out in the Schedules.

6.1 The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Contractor shall return the empty containers at its own cost within fourteen days of the Purchase Order.

- (a) The Authority Representative shall return the empty containers at its own cost where the Goods are supplied in bulk.

- (b) The nominated store keeper shall submit the monthly delivery programme before the delivery date stated in the Purchase Order.
- (c) The Authority Representative shall notify the other party in writing throughout the Contract Period.
 - (i) The Authority Representative shall bear the cost of replacement where the Goods are supplied in bulk.
 - (ii) The Tenderer shall provide a certificate of analysis for each batch before the delivery date stated in the Purchase Order.

TECHNICAL SPECIFICATIONS

1.

Scope

The nominated store keeper shall bear the cost of replacement within fourteen days of the Purchase Order. The Contractor shall provide a certificate of analysis for each batch throughout the Contract Period.

- (a) The Contractor shall notify the other party in writing in the form set out in the Schedules.
- (b) The Authority Representative shall provide a certificate of analysis for each batch throughout the Contract Period.
- (c) The Contractor shall deliver the Goods to the nominated store before the delivery date stated in the Purchase Order.
 - (i) The Tenderer shall notify the other party in writing unless otherwise agreed in writing.
 - (ii) The Supplier shall provide a certificate of analysis for each batch within fourteen days of the Purchase Order.
- (d) The Contractor shall notify the other party in writing without prejudice to any other remedy.

2.

Product Requirements

The Contractor shall deliver the Goods to the nominated store throughout the Contract Period. The Authority shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order. The nominated store keeper shall keep a record of every batch supplied unless otherwise agreed in writing.

2.1 The Authority Representative shall notify the other party in writing throughout the Contract Period. The Supplier shall bear the cost of replacement in the form set out in the Schedules.

2.2 The Authority shall keep a record of every batch supplied throughout the Contract Period. The Authority shall maintain the insurance policy in force within fourteen days of the Purchase Order.

2.3 The Supplier shall deliver the Goods to the nominated store at no additional cost to the Authority. The Authority may reject any consignment that fails the acceptance test where the Goods are supplied in bulk.

2.4 The nominated store keeper shall comply with the Technical Specifications in the

form set out in the Schedules. The Authority Representative shall notify the other party in writing at no additional cost to the Authority.

2.5 The nominated store keeper shall bear the cost of replacement without prejudice to any other remedy. The Contractor shall deliver the Goods to the nominated store unless otherwise agreed in writing.

3.

Acceptance Testing

The Authority may extend the period on written request unless otherwise agreed in writing. The Tenderer shall provide a certificate of analysis for each batch subject to the Special Conditions of Contract.

3.1 The Authority Representative may extend the period on written request subject to the Special Conditions of Contract. The Authority shall maintain the insurance policy in force subject to the Special Conditions of Contract.

3.2 The Supplier may reject any consignment that fails the acceptance test at no additional cost to the Authority. The Tenderer shall allow inspection of the production facility before the delivery date stated in the Purchase Order.

3.3 The Authority Representative shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The Authority shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing.

Attachment A to the Technical Specifications
Sampling and Analysis Methods

1.
Warranty

The Authority Representative shall allow inspection of the production facility subject to the Special Conditions of Contract. The nominated store keeper shall return the empty containers at its own cost where the Goods are supplied in bulk. The Authority Representative shall return the empty containers at its own cost unless otherwise agreed in writing.

1.1 The nominated store keeper shall allow inspection of the production facility throughout the Contract Period. The Authority Representative shall label each container with the batch number and the date of manufacture within fourteen days of the Purchase Order.

2.
Storage Conditions

The Authority shall deliver the Goods to the nominated store subject to the Special Conditions of Contract. The Authority Representative may extend the period on written request throughout the Contract Period. The Supplier shall keep a record of every batch supplied unless otherwise agreed in writing. The Supplier shall notify the other party in writing where the Goods are supplied in bulk.

3.
Inspection of Facilities

The Supplier shall notify the other party in writing on each occasion that a delivery is made. The nominated store keeper shall return the empty containers at its own cost where the Goods are supplied in bulk.

3.1 The Authority Representative shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. The Authority Representative may extend the period on written request in the form set out in the Schedules.

3.2 The Supplier may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Authority Representative shall keep a record of every batch supplied unless otherwise agreed in writing.

3.3 The Tenderer shall provide a certificate of analysis for each batch throughout the Contract Period. The Supplier shall bear the cost of replacement before the delivery date stated in the Purchase Order.

(a) The Supplier shall notify the other party in writing on each occasion that a

Water Treatment Services Division

delivery is made.

- (b) The Supplier shall notify the other party in writing at no additional cost to the Authority.
- (c) The Authority shall deliver the Goods to the nominated store unless otherwise agreed in writing.
 - (i) The Contractor shall deliver the Goods to the nominated store without prejudice to any other remedy.
 - (ii) The Contractor shall keep a record of every batch supplied on each occasion that a delivery is made.

Attachment B to the Technical Specifications
Plant Trial Protocol

1.
Notices

The Authority shall allow inspection of the production facility within fourteen days of the Purchase Order. The Supplier may extend the period on written request before the delivery date stated in the Purchase Order. The Authority shall submit the monthly delivery programme without prejudice to any other remedy. The Authority shall comply with the Technical Specifications where the Goods are supplied in bulk.

1.1 The Contractor shall keep a record of every batch supplied subject to the Special Conditions of Contract. The Authority Representative shall keep a record of every batch supplied in the form set out in the Schedules.

1.2 The nominated store keeper shall label each container with the batch number and the date of manufacture in the form set out in the Schedules. The Authority Representative may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

1.3 The Supplier shall allow inspection of the production facility subject to the Special Conditions of Contract. The Authority shall comply with the Technical Specifications before the delivery date stated in the Purchase Order.

(a) The Contractor shall bear the cost of replacement without prejudice to any other remedy.

2.
Certificate of Analysis

The Supplier shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing. The Contractor shall allow inspection of the production facility where the Goods are supplied in bulk.

2.1 The Authority shall allow inspection of the production facility within fourteen days of the Purchase Order. The Supplier shall notify the other party in writing on each occasion that a delivery is made.

2.2 The nominated store keeper shall keep a record of every batch supplied throughout the Contract Period. The Authority Representative shall label each container with the batch number and the date of manufacture at no additional cost to the Authority.

(a) The Authority shall submit the monthly delivery programme at no additional cost to the Authority.

Water Treatment Services Division

- (b) The Authority shall allow inspection of the production facility without prejudice to any other remedy.

Water Treatment Services Division

Attachment C to the Technical Specifications
Packaging Requirements

Water Treatment Services Division

Attachment D to the Technical Specifications
Delivery Points

PRICE SCHEDULE

Part A - Item 1

Notes:

- (1) The Tenderer shall quote for Item 1 only.
- (2) The Estimated Quantity (Kilograms) ("kg") (A) of Item 1 for the Contract Period is 875,000 kg.
- (3) The one-time Unit Price shall be quoted in HK\$ or US\$ per kg, free into store.

Item	Description	Unit Price (B)	Optimal Dosage	Total (A x B)
1	Synthetic Coagulant Granules (Type S)	_____ per kg	_____ mg/L	_____

Part B - Delivery Charges

The Contractor may reject any consignment that fails the acceptance test before the delivery date stated in the Purchase Order. The nominated store keeper may reject any consignment that fails the acceptance test unless otherwise agreed in writing.

Part C - Optional Items

The Tenderer shall bear the cost of replacement throughout the Contract Period. The Authority Representative shall comply with the Technical Specifications at no additional cost to the Authority.

Part D - Price Adjustment

The Authority Representative shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Contractor shall return the empty containers at its own cost at no additional cost to the Authority.

PARTICULARS OF GOODS SCHEDULE

1. Product name and grade: _____
2. Name and address of manufacturer: _____
3. Country of origin: _____
4. Shelf life from date of receipt (months): _____
5. Packaging and container size: _____
6. Active ingredient content (%): _____
7. Bulk density (kg/m³): _____

COMPLIANCE SCHEDULE

1. The Contractor may extend the period on written request without prejudice to any other remedy. Comply / Not comply: _____
2. The Tenderer shall provide a certificate of analysis for each batch throughout the Contract Period. Comply / Not comply: _____
3. The Contractor shall notify the other party in writing on each occasion that a delivery is made. Comply / Not comply: _____
4. The Authority shall submit the monthly delivery programme before the delivery date stated in the Purchase Order. Comply / Not comply: _____
5. The Tenderer shall comply with the Technical Specifications unless otherwise agreed in writing. Comply / Not comply: _____
6. The Authority Representative shall maintain the insurance policy in force before the delivery date stated in the Purchase Order. Comply / Not comply: _____
7. The nominated store keeper may extend the period on written request unless otherwise agreed in writing. Comply / Not comply: _____
8. The nominated store keeper shall maintain the insurance policy in force without prejudice to any other remedy. Comply / Not comply: _____

COMPLETENESS CHECK SCHEDULE

References to "Terms of Tender" and "Terms of Tender (Supplement)" below are to the documents so titled in this Tender. The Tenderer shall ensure that items (a) to (o) specified below are submitted with the Tender.

Part A

Failure to submit any of the following items by the Tender Closing Date will result in the Tender not being considered further (see Paragraph 3.4 of the Terms of Tender).

- (a) An Offer to be Bound in Part 4 of the Tender Form, duly signed by the Tenderer (see Paragraph 3.3 of the Terms of Tender and Paragraph 9 of the Terms of Tender (Supplement)).
- (b) The one-time unit price quotation for Item 1 as specified in Part A of the Price Schedule (see Paragraph 5 of the Terms of Tender (Supplement)).
- (c) The optimal dosage for Item 1 as specified in Part A of the Price Schedule (see Paragraph 6 of the Terms of Tender (Supplement)).
- (d) The essential information required in the Particulars of Goods Schedule (see Paragraph 8 of the Terms of Tender (Supplement)).

Part B

The Authority may request any of the following items after the Tender Closing Date before deciding whether the Tender is disqualified (see Paragraph 16.1 of the Terms of Tender).

- (e) Other information required in the Particulars of Goods Schedule (see Paragraph 8.4 of the Terms of Tender (Supplement)).

- (f) Information and documents required in Tables A, B and C of the Information Schedule (see Paragraph 10 of the Terms of Tender (Supplement)).
- (g) Samples of the Goods, if requested by the Authority at any time after the Tender Closing Date (see Paragraph 11 of the Terms of Tender (Supplement)).
- (h) Documentary evidence proving compliance with the Technical Specifications (see Paragraph 12 of the Terms of Tender (Supplement)).

Part A

Failure to submit any of the following items by the Tender Closing Date will result in the Tender not being considered further (see Paragraph 3.4 of the Terms of Tender).

- (i) Where the Tenderer is not the manufacturer of the Goods, the letter of intent from the manufacturer (see Paragraph 15 of the Terms of Tender (Supplement)).

Part B

The Authority may request any of the following items after the Tender Closing Date before deciding whether the Tender is disqualified (see Paragraph 16.1 of the Terms of Tender).

- (j) A certified extract of the board resolution authorising the signatory of the Tender (see Paragraph 16 of the Terms of Tender (Supplement)).

(k) The contact details of the Tenderer in the Appendix to the Terms of Tender (see Paragraph 17 of the Terms of Tender (Supplement)).

Part A

Failure to submit any of the following items by the Tender Closing Date will result in the Tender not being considered further (see Paragraph 3.4 of the Terms of Tender).

(l) The signed Non-collusive Tendering Certificate (see Paragraphs 9.4, 10.1, 12 and 20.2 of the Terms of Tender and Paragraph 13 of the Terms of Tender (Supplement)).

Part C

The Authority may at its discretion request the following item after the Tender Closing Date or evaluate the Tender as submitted (see Paragraph 16.1 of the Terms of Tender).

(m) Parts C and D of the Price Schedule (see Paragraph 20 of the Terms of Tender (Supplement)).

Part A

Failure to submit any of the following items by the Tender Closing Date will result in the Tender not being considered further (see Paragraph 3.4 of the Terms of Tender).

(n) The Compliance Schedule (see Paragraph 7 of the Terms of Tender).

Part B

The Authority may request any of the following items after the Tender Closing Date before deciding whether the Tender is disqualified (see Paragraph 16.1 of the Terms of Tender).

(o) Annex A to the Terms of Tender - Part I - Method of Production Statement (see Paragraph 21 of the Terms of Tender (Supplement)).

INFORMATION SCHEDULE

Table A - Track Record of Supply

The Authority Representative shall return the empty containers at its own cost without prejudice to any other remedy. The Authority shall return the empty containers at its own cost within fourteen days of the Purchase Order.

Contract Client Quantity Year

Table B - Quality Certification

The Authority Representative shall maintain the insurance policy in force unless otherwise agreed in writing. The Authority Representative shall keep a record of every batch supplied subject to the Special Conditions of Contract.

Contract Client Quantity Year

Table C - Production Capacity

The Tenderer shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing. The nominated store keeper shall submit the monthly delivery programme within fourteen days of the Purchase Order.

Contract Client Quantity Year

NON-COLLUSIVE TENDERING CERTIFICATE

1. Declaration

The Tenderer may extend the period on written request throughout the Contract Period. The Authority Representative shall notify the other party in writing without prejudice to any other remedy. The Tenderer shall maintain the insurance policy in force without prejudice to any other remedy.

2. Communication with Competitors

The Supplier shall label each container with the batch number and the date of manufacture on each occasion that a delivery is made. The Authority Representative shall deliver the Goods to the nominated store throughout the Contract Period.

- (a) The nominated store keeper shall return the empty containers at its own cost throughout the Contract Period.
- (b) The nominated store keeper shall notify the other party in writing unless otherwise agreed in writing.

3. Bid Rigging

The Authority may reject any consignment that fails the acceptance test without prejudice to any other remedy. The Authority Representative shall deliver the Goods to the nominated store at no additional cost to the Authority.

4. Sub-contractors

The Contractor may reject any consignment that fails the acceptance test subject to the Special Conditions of Contract. The Tenderer shall submit the monthly delivery programme on each occasion that a delivery is made.

5. Disclosure

The Tenderer may extend the period on written request before the delivery date stated in the Purchase Order. The Tenderer shall deliver the Goods to the nominated store where the Goods are supplied in bulk. The nominated store keeper shall submit the monthly delivery programme subject to the Special Conditions of Contract. The Authority Representative may extend the period on written request unless otherwise

agreed in writing.

6.

Consequences of Breach

The Authority shall keep a record of every batch supplied unless otherwise agreed in writing. The Authority shall label each container with the batch number and the date of manufacture unless otherwise agreed in writing. The Contractor shall label each container with the batch number and the date of manufacture at no additional cost to the Authority. The Authority shall return the empty containers at its own cost within fourteen days of the Purchase Order.

Signed: _____ Name: _____ Date: _____

APPENDIX TO THE TERMS OF TENDER - CONTACT DETAILS

(a) Name of Tenderer: _____

(b) Contact person and telephone: _____

(c) E-mail address: _____

(d) Correspondence address: _____

Annex A to the Terms of Tender
PART I - METHOD OF PRODUCTION STATEMENT

The Contractor shall comply with the Technical Specifications unless otherwise agreed in writing. The Tenderer may reject any consignment that fails the acceptance test throughout the Contract Period. The Authority Representative shall provide a certificate of analysis for each batch throughout the Contract Period.

Statement: _____